

PUBLIC VERSION –
CONFIDENTIAL MATERIALS EXCLUDED

PUBLIC VERSION

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-13

ACCESS ONE TRANSPORT, INC.
Complainant,
v.

COSCO SHIPPING LINES CO. LTD.
Respondent.

COMPLAINANT’S SUPPLEMENTAL REBUTTAL APPENDIX

Complainant Access One Transport, Inc. (“Access”) hereby submits is supplemental rebuttal appendix. The documents attached hereto are bates stamped in numerical order with the prefix “CX”. The first document attached hereto starts with CX1460 for continuity with Access Appendix submitted with its Opening Brief. Access submits this rebuttal appendix per 46 C.F.R. §502.202.

The COSCO Email marked confidential CX01467-CX01476 is submitted as a confidential document as required by the terms of the protective order entered in this action. COSCO had designated this document as confidential in response to discovery. It was not practical to reach an agreement prior to the filing of this appendix, thus per the terms of the protective order it is being filed pursuant 46 C.F.R. §502.5. However, Access does not make any motion to maintain its confidentiality and instead will oppose any such motion if filed by COSCO since the document is not a trade secret or other confidential research, development, or commercial information pursuant to 46 C.F.R. §502.5(b).

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Date: January 31, 2025

Respectfully submitted,



Stephen M. Uthoff
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¹ The public version of this document will redact CX01467-CX01476 because of its confidential designation.

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CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2025, the foregoing COMPLAINANT'S SUPPLEMENTAL REBUTTAL APPENDIX has been served upon all interested persons and parties by electronic means pursuant to the below list.

On today's date, a further hard copy has also been sent to the Presiding Administrative Law Judge at the below address via courier for next business day delivery and a hard copy has been sent via courier to counsel for respondent at the below address for next business day delivery.

Stephen M. Uthoff

Stephen M. Uthoff

Counsel for Respondent COSCO

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Presiding Administrative Law Judge

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ACCESS' INITIAL DISCLOSURES

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INITIAL DISCLOSURES OF ACCESS ONE TRANSPORT, INC.

General Statement

Access One Transport, Inc. (“Access One”) does not waive and expressly reserves any privilege or other protection that may apply to any information or document identified herein. No disclosure herein shall be deemed a waiver of any objection available to Access One. Access One specifically reserves the right to raise any objection or move for a protective order to protect the confidentiality of any information disclosed herein.

Access One reserves the right to amend, supplement or revise the Disclosures set forth herein. Access Ones’s Disclosures are neither intended to be, nor shall they be deemed, a representation that there is no other information or witnesses relevant to this proceeding. Investigation and discovery are continuing.

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1. **Individuals that may have discoverable information in support of Access One's claims.**

Nobu Suzuki

Kahana Ogawa

William Thompson

All of the above individuals may be contacted through counsel for Access One.

If needed to supplement or replace the above testimony of the above witnesses, person(s) most knowledgeable on behalf of Access One regarding empty return location availability; appointments for returns; operational issues regarding empties at Access One and returning empties; communications with Respondent COSCO SHIPPING LINES CO. LTD. and its agents ("COSCO"); detention invoices from COSCO and disputes thereon; invoices to Access One customers and COSCO; threatened shut out of Access one, and lost or diverted business. These witnesses may be contacted through counsel for Access One.

The person(s) most knowledgeable regarding empty terminations and appointments at the following terminals:

West Basin Container Terminal
2050 John S Gibson Blvd.
San Pedro, CA 90731

PCT
1521 Pier J Avenue
Long Beach, CA 90802

Fenix Marine Services
614 Terminal Way
San Pedro, CA 9073

Everport
389 Terminal Way
San Pedro, CA 90731

The person(s) most knowledgeable regarding empty terminations and appointments at terminals used by COSCO in the Ports of Los Angeles and Long Beach and any other applicable terminal at

EModal
100 Franklin Square Drive
Suite 400
Somerset, NJ 08873

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Blue Cargo
440 N Barranca Ave #6606
Covina, CA 91723

Persons most knowledgeable at COSCO regarding:

1. Agreements, liaison and directions to terminals or other empty termination locations used in or around the Ports of Los Angeles and Long Beach related empty to terminations including but not limited to availability, volume, type of equipment or appointment, and notice to motor carriers.

2. Procedures and policies regarding valid or invalid disputed detention invoices.

3. The establishment of the daily COSCO empty return locations.

4. The review and determination of any dispute raised by Access One to COSCO's detention invoices which are subject of this action including any threatened shut out.

5. Operational decisions concerning the inbound and outbound cargo being handled by COSCO in and through the Ports of Los Angeles and Long Beach in 2021 and 2022.

6. Any efforts to locate alternative locations to allow for the return of empty containers in or around the Ports of Los Angeles and Long Beach from January 1, 2021 to the present.

7. Any plans or changes to the way COSCO will accept empty containers in 2024 and in the future at or around the Ports of Los Angeles and Long Beach.

8. The review and determination of any dispute raised by other motor carriers to COSCO's detention invoices related to the return of empty containers in the Ports of Los Angeles and Long Beach from January 1, 2021 to the present.

In addition to all witnesses identified above, Access One reserves the right to produce witnesses to authenticate documents or data where necessary and witnesses as can be further identified in response to any contentions proffered by Respondent or documents produced by any party or that otherwise become available.

2. Description of documents and information

a. Email communications concerning the return of empty containers and related issues, which may include the lack of empty return locations, appointments to return empty

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containers, dual appointments, operational difficulties, detention charges, other charges to Access One customers related to the inability of COSCO to accept empty containers, disputes to COSCO detention charges and responses, requests for empty locations.

b. Detention invoices from COSCO.

c. Invoices from Access One to its customers and COSCO for charges related to the COSCO empties.

d. Data regarding COSCO containers hauled by Access One.

e. Payments to COSCO by Access One.

d. Threatened shut out by COSCO.

3. Estimated damages:

a. net detention invoices from COSCO:	\$336,635.00
b. storage:	\$139,690.00
c. chassis:	\$124,160.00
d. stop over:	\$31,875.00
e. redelivery:	\$20,400.00
Total:	\$652,760.00

Plus additional damages suffered according to proof; attorney's fees and costs of suit.

4. Expert Witnesses

Access One reserves the right to designate any expert witnesses per 46 CFR §502.141(d).

Date: June 27, 2024

Respectfully submitted,



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Attorneys for Complainant,
Access One Transport, Inc.

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CERTIFICATE OF SERVICE

I hereby certify that on June 27, 2024, the foregoing INITIAL DISCLOSURES has been served upon all interested persons and parties by electronic means pursuant to the below list.

Stephen M. Uthoff

Stephen M. Uthoff

Counsel for Respondent COSCO

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CONFIDENTIAL COSCO EMAILS

CX01467

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DECLARATION AND CERTIFICATION

We, Ko & Martin - Certified Interpreters and Translators, declare that we are

(✓) Certified Court Interpreters as described in GC68565

We are certified to interpret and translate from the Chinese language to the English language and from the English language to the Chinese language.

We further declare that we have reviewed the attached document from the Chinese language to the English language.

We declare to the best of our abilities and belief, that this is a true and accurate translation of the Chinese language text of **1 file listed below.**

Specific Description of the Document

File with bates no. 24-13 COSCO000007 to 24-13 COSCO000010

We declare under penalty of perjury under the laws of the united states that the foregoing is true and correct.

This declaration is signed this 28th of January 2025 in Los Angeles, California.

Lingling Men Martin

President

Ko & Martin - Certified Interpreters and Translators



Signature



KO & MARTIN – Certified Interpreters and Translators

www.komartin.com

Email: chinese.division@komartin.com

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SUPPLEMENTAL DECLARATION OF WILLIAM THOMPSON

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SUPPLEMENTAL DECLARATION OF WILLIAM THOMPSON

I, William Thompson declare:

1. That I am the Sr. Manager of Complainant, Access One Transport, Inc. ("Access") and have been in this position at Access for at least five years. I have worked at Access for at least 12 years. As part of my duties as Sr. Manager, I had dispatching duties and was required to monitor and assist with scheduling transportation of full and empty containers in and out of the Ports of Los Angeles and Long Beach ("LALB"). I had these duties during the Relevant Time Period as defined in Access' brief. I have personal knowledge of the fact stated herein and if called upon as a witness I could and would competently testify thereto.

2. On or about December 11, 2025, I executed my declaration in support of Access' opening brief herein. In that declaration I declared as is relevant to this supplemental declaration (paragraph numbers are as in the original):

3. *When COSCO designated terminal availability, Access was still required to obtain an appointment to return the empty container. Access found that either the terminals did not have any appointments available for return of the empty containers or were requiring “dual” transactions in order to return an empty container thus prohibiting the return of the empty container in a timely fashion. See Access Terminal Availability Summary, CX01436-CX01439; Blue Cargo screen shots, CX01092-CX01302; eModal information and COSCO emails, CX01311-CX01418.*

7. *Access employees would consult the information provided by COSCO/eModal on at least a daily basis in an effort to determine if there were locations that were designated as an empty terminal location.*

8. *Where COSCO designated an empty return location, before an empty container could be returned, Access must then make an appointment with the designated terminal.*

9. *Access discovered there were no actual appointments available to return empty containers to COSCO terminals even when COSCO had designated a terminal for returns.*

10. *When no appointments were available either I or a member of my dispatch team would also contact the designated terminal or COSCO to determine alternative locations or appointment availability. See eModal Information and COSCO emails, CX01311-CX01418.*

3. As indicated in paragraph 3 of my prior declaration, actions were taken on a daily basis. “Daily basis” in my view includes weekends. I did not qualify daily basis.

4. The subsequent paragraphs in my prior declaration regarding consulting COSCO information and searching for appointments for any type of appointment were conducted on a daily basis. For the avoidance of doubt “daily basis” includes all weekends and both shifts. In my

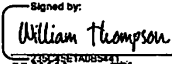
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opinion, when read as a whole it should have been evident Access, consulted eModal information, attempted to obtain appointments and also attempted to return containers on a daily basis, *including* weekends.

I declare under penalty of perjury under the laws of the United States the foregoing is true and correct. Executed at Gardena, California.

Dated: 1/29/2025

Signed by:


William Thompson, Declarant

SUPPLEMENTAL DECLARATION OF STEPHEN M. UTHOFF

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SUPPLEMENTAL DECLARATION OF STEPHEN M. UTHOFF

I, Stephen M. Uthoff declare:

1. That I am attorney of record for Complainant, Access One Transport, Inc. (“Access”) herein. I am the President and shareholder of the Uthoff Law Corporation. I make this supplemental declaration in support of Access’ Reply Brief and Supplemental Rebuttal Appendix filed concurrently therewith. I have personal knowledge as to the matters stated herein and if called upon as a witness, I could and would competently testify thereto.

2. Included in the Appendix are true and correct copies of documents maintained the ordinary court of business at the Uthoff Law Corporation and were part of Access’ case file related to this action:

Access’ Initial Disclosures	CX01460-CX01466
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3. The original confidential emails CX01467-CX01480 were served as part of COSCO's responses to discovery and were bates marked by COSCO as shown on the face thereof. The translated version was as provided to me by the certified translator.

I declare under penalty of perjury under the laws of the United States the foregoing is true and correct.

Dated: January 31, 2025

Stephen M. Uthoff

Stephen M. Uthoff, Declarant